

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #07	CCRB Case #: 202404464	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 04/24/2024 6:34 PM	Location of Incident: East 180th Street and Grand Concourse	18 Mo. SOL 10/24/2025	Precinct: 46
Date/Time CV Reported Wed, 04/24/2024 10:31 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/07/2024 9:38 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brandon Roman	25440	967306	BX SU CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brian Jaquez	13354	966287	BX SU CRT
2. SGT Robert Wichers	04706	958169	046 PCT
3. PO Aalijhaenle Vargas	00864	963789	046 PCT
4. PO Erick Xoyatlacabada	20536	968197	046 PCT
5. PO Michael McCabe	31701	966698	046 PCT
6. PO Jorge Flores	07680	954816	BX SU CRT
7. PO Ana Alba	05755	963842	BX SU CRT
8. PO Justin Clavell	29250	969019	BX SU CRT
9. SGT Tatiana Cruz	01941	950253	BX SU CRT
10. PO Michael Vazquez	25967	968865	BX SU CRT
11. PO Adrian Vasquez	09186	970916	046 PCT
12. PO Pierre Senat	07557	964762	BX SU CRT
13. Francesco Monastra		969229	
14. PO John Dailey	23134	971032	046 PCT
15. PO Christopher Estevez	25226	971921	BX SU CRT
16. CPT Alberys Garcia	00000	945747	046 PCT
17. PO Oshane Cole	08641	963460	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Brandon Roman	Force: Police Officer Brandon Roman struck § 87(2)(b) with a vehicle.	A . Substantiated

Case Summary

On April 24, 2024, Lt. Elvin Pichardo called IAB to report § 87(2)(b) complaint of an officer's use of force against him, and this complaint was subsequently received at the CCRB on May 7, 2024.

On April 24, 2024, at approximately 6:34 p.m., § 87(2)(b) drove on a moped on Grand Concourse in the Bronx and, near the intersection with East 180th Street, PO Brandon Roman of the Bronx Specialized Unit Community Response Team (CRT) drove a vehicle that collided with § 87(2)(b) vehicle (**Allegation A -Force: Vehicle, Substantiated**). § 87(2)(b) was arrested by PO Roman with a top charge of fleeing an officer in a motor vehicle in the second degree (Board Review 01), transported to § 87(2)(b) Hospital for treatment, [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Video footage obtained in this case was recorded by a commercial surveillance camera and obtained by the CCRB's Field Team (Board Review 02) and recorded by multiple officers on their Body-Worn Cameras (BWCs) (Board Review 03 through 20).

PO Roman's Summary of Employment History (Board Review 32) shows that on October 15, 2024, the NYPD issued PO Roman a Schedule "B" Command Discipline-Retraining in connection with this incident.

Findings and Recommendations

Allegation (A) Force: Police Officer Brandon Roman struck § 87(2)(b) with a vehicle.

It is undisputed that on April 24, 2024, at approximately 6:34 p.m., in the vicinity of Grand Concourse and East 180th Street in the Bronx, PO Brandon Roman of the Bronx Specialized Unit CRT was the driver of a vehicle that collided with a moped driven by § 87(2)(b)

§ 87(2)(b) stated to the CCRB (Board Review 21) that at the time of this incident, he drove in the right lane of two northbound lanes on Grand Concourse. § 87(2)(b) drove in the vicinity of his brother, his friend, and additional individuals, all of whom drove motorcycles in the area. § 87(2)(b) did not speed, change lanes, or take any actions he thought would attract the attention of officers, and he did not recall seeing any other nearby driver do so. Prior to arriving at Grand Concourse and East 180th Street, the other members of the group made a right turn, and they were followed by an unmarked, black vehicle. § 87(2)(b) continued moving northbound, decided to return to his home, and, between East 180th Street and East 181st Street, conducted a leftwards U-turn from the right lane of the northbound lanes of Grand Concourse to the southbound lanes.

§ 87(2)(b) moved southbound in the right lane of the two lanes. After a period of 30 to 60 seconds, § 87(2)(b) passed the intersection of Grand Concourse and East 180th Street. Between East 180th Street and East 179th Street, he saw that an unmarked, black vehicle traveled northbound, against the flow of traffic and towards him. § 87(2)(b) thought it was the same vehicle he had seen earlier and that the vehicle had returned to Grand Concourse. In response to seeing that the vehicle was moving towards him, § 87(2)(b) turned his vehicle to his right, moving onto the sidewalk and turning nearly 180 degrees. The black vehicle moved partially onto the sidewalk and struck the rear of § 87(2)(b) vehicle. § 87(2)(b) body and his vehicle both moved forward as a result of the impact. When § 87(2)(b) body stopped moving forward, his vehicle continued moving forward past him. § 87(2)(b) sustained a hip fracture as a result of this collision.

In the BWC footage PO Roman recorded (Board Review 03), at the 0m30s mark, PO Roman passes

the intersection with East 179th Street. At the 00m34s mark, PO Roman slows the vehicle significantly, nearly to a temporary stop, and then increases its speed. At the 00m42s mark, PO Roman passes the intersection with East Burnside Avenue. The vehicle turns suddenly to the left until it is nearly perpendicular to the building facades to the vehicle's left.

At the 00m53s mark, PO Roman turns the steering wheel to the right, maintaining this position. PO Roman's hands tense on the steering wheel, appearing to tighten in grip on it. The vehicle approaches the intersection with East 180th Street, with a traffic signal facing away from the vehicle in front of it. Immediately after this, § 87(2)(b) head comes into view in front of the vehicle, positioned slightly to the right of the traffic signal and near the center of the vehicle hood. In the next second, the distance between the vehicle and § 87(2)(b) shortens, and § 87(2)(b) then moves downward, to the left of the vehicle and out of view. PO Roman continues holding the steering wheel turned to the right as the vehicle moves into the intersection. PO Roman then returns the steering wheel to its original position and stops the vehicle. The entirety of the process of PO Roman turning to the right and then stopping the vehicle last approximately one and a half seconds.

At the 00m58s mark, PO Roman exits the vehicle and approaches § 87(2)(b) who is partially sitting and partially laying in the center of a sidewalk and median between lanes of the Grand Concourse roadway at the intersection with East 180th Street.

At the 02m21s mark, Sgt. Tatiana Cruz steps next to PO Roman, who says, "Uh, a whole group of mopeds. He swerved in front of us, clipped the front of our car" and hits his right fist against his open left palm. PO Roman says, "And then he, like, fled right here."

In the commercial surveillance footage received in this case (Board Review 02), the southbound service lanes of traffic on Grand Concourse at the intersection with East 180th Street are visible in the top right corner of the frame, with the southbound and northbound express lanes visible further in the same corner. At the 04m45s mark, multiple vehicles move in the northbound lanes, and no vehicles are visible in the southbound lanes whatsoever until the 04m52s mark, at which point § 87(2)(b) moped and body move northwards into the frame, followed by PO Roman's vehicle.

PO Roman stated to the CCRB (Board Review 22) that his assignment in CRT addressed quality of life issues and patterns occurring within respective precincts, boroughs, and the city as a whole and that at the time of this incident, a pattern of chain snatchings was present. The pattern involved a male on a blue moped wearing a black ski mask and approaching individuals in the vicinity of Grand Concourse, Jerome Avenue, and Kingsbridge shopping centers, getting close to an individual, taking visible jewelry from the individual's person, and then fleeing on the moped, which did not have a license plate or other identifying features.

During this incident, PO Roman, the driver of his vehicle, was stopped at a red traffic signal at an intersection with Grand Concourse when he saw approximately ten individuals on mopeds moving northbound on Grand Concourse. Some individuals performed wheelies, some did not wear helmets, some held cell phones and recorded themselves as they drove, some were "lane splitting" by not maintaining their lane of traffic, and some of the mopeds did not have displayed license plates. One and only one of the mopeds was blue. PO Roman turned left onto Grand Concourse and traveled northbound behind and advancing towards the group, which he reached after approximately four blocks. PO Roman moved his vehicle within the group of mopeds and activated his vehicle's lights and sirens to alert the moped drivers to the officers' presence, at which time PO Roman could move his vehicle to a position behind them. PO Roman noted that this technique was something he learned in the Advanced Emergency Vehicle Operation Course (EVOC) training that he received.

While PO Roman was within the group of mopeds, he noticed that one moped was blue, had no license plate, and its driver, § 87(2)(b) wore a ski mask covering the bottom of his face, over his mouth and up to the bottom of his nose. PO Roman saw that the front of the moped was damaged, which PO Roman recognized as a sign that the moped had potentially been hotwired such that it could be operated without a key. All of the moped drivers in the area except for § 87(2)(b) appeared to notice the officers' presence and exited the lanes of traffic where they had been traveling in one of four illegal ways: turning westbound off of Grand Concourse, turning eastbound off of Grand Concourse, making a U-turn on Grand Concourse, or moving from the express lanes to the service lane on Grand Concourse. PO Roman did not attempt to stop any of these drivers because his attention remained focused on § 87(2)(b) who PO Roman thought could have been associated with the chain snatching pattern and a stolen vehicle.

Because he would use his vehicle's lights and sirens while in pursuit but was not in pursuit of § 87(2)(b) PO Roman turned off his vehicle's lights and sirens and continued following § 87(2)(b) as he moved in and out of traffic, fleeing from officers. PO Roman had no plan of what he would do next and no concept of what § 87(2)(b) would do next. PO Roman intended to follow § 87(2)(b) direction of travel and observe his next actions. § 87(2)(b) then moved in traffic to move northbound in southbound lanes, where there was no opposing traffic. After traveling behind § 87(2)(b) for approximately two blocks and fewer than ten seconds, at the intersection of East 180th Street and Grand Concourse, PO Roman traveled northbound in the westmost (far left from his perspective) southbound lane of traffic, and § 87(2)(b) traveled in the same direction, close to the center of the two southbound lanes and to the right side of PO Roman's vehicle. PO Roman saw no other vehicular traffic in the southbound lanes and saw that vehicles were stopped at a red traffic signal approximately one block north of him. The weather conditions were clear and dry, no pedestrians were in the area, and the roadway was isolated in that it was separated from other areas and had no points of ingress for vehicles or pedestrians. For these reasons, he thought that it was not unsafe to continue traveling where he did.

PO Roman followed § 87(2)(b) with his intent being to make additional observations of what § 87(2)(b) would do next. § 87(2)(b) moved his vehicle, which was approximately two car lengths in front of and to the right of PO Roman's vehicle, to the left and in front of PO Roman's vehicle. Because this was near the indented curb, an area where § 87(2)(b) could move his moped from the express lanes to the service lane, PO Roman thought that § 87(2)(b) was attempting to move in this way. As § 87(2)(b) moved in front of PO Roman's vehicle, he also applied his moped's brakes, slowing in speed. PO Roman used his vehicle's brakes and turned its steering wheel to the right in an attempt to avoid colliding with § 87(2)(b) PO Roman's vehicle, being larger than § 87(2)(b) vehicle, continued traveling forward for longer than § 87(2)(b) vehicle did and unintentionally struck the rear of § 87(2)(b) moped, which was "jolted" forward. The front wheel of the moped struck the curb, and § 87(2)(b) fell from the moped.

The details in arrest report § 87(2)(b) (Board Review 01), prepared by PO Roman for § 87(2)(b) states (with syntax corrected for clarity), "At time and place of occurrence, defendant was observed disobeying multiple VTL infractions and operating said moped in a reckless manner. Defendant, in an attempt to evade police, did make an abrupt stop and attempt to make a left unto a sidewalk, subsequently causing RMP to hit the back of his vehicle. Defendant was placed under arrest without further incident." § 87(2)(b) was charged with fleeing an officer in a motor vehicle (in the second and third degree), reckless endangerment, reckless driving, and operating an unregistered vehicle.

The Threat, Resistance, or Injury (TRI) Report § 87(2)(b) (Board Review 23) states (with syntax corrected for clarity) in the details of incident, “At time and place of occurrence, officers observed motorist operating a 2023 blue Razor moped, bearing no license plate, in a reckless manner. Officers did utilize lights and sirens in an attempt to stop motorist for disobeying multiple VTL infractions. Defendant, in an attempt to evade police, did accelerate to a high rate of speed. Motorist then came to an abrupt stop, made a sharp left turn while driving on wrong side of road to get on to the nearest sidewalk. Officers were following closely and were unable to avoid colliding with the rear of the motorist’s moped. Motorist did fall off moped, claiming substantial pain to his left leg and ankle. No visible injuries were observed. Subject made a spontaneous utterance, stating in sum and substance that he had recently broken his left leg and had surgery.” A portion of this statement was also included in the accident description for Motor Vehicle Collision report § 87(2)(b) (Board Review 24), prepared by Sgt. Tatiana Cruz for the collision in this incident.

In the training materials received reflecting the Advanced EVOC course PO Roman referenced, the Instructor Guide for Day One of the Highway District Advanced RMP Operation course (Board Review 28) provides ten driving tips and techniques to officers. Number six is “Expect the Unexpected; Devise an Out” and states, “Don’t expect the vehicles around you to make the proper decisions and ‘moves’, as you would. Be prepared for the worst and have an escape, or an ‘Out’ ready. By using a wide ‘field of view’ (as previously discussed), the necessary time to make that ‘escape’ decision should be afforded to you. It is now up to you to have pre-planned an ‘Out’, to avoid a collision.” It further notes, “Motorists may panic when they see an emergency vehicle to the rear. They may slam on the brakes.”

The commercial surveillance footage and BWC footage suggest that, consistent with PO Roman’s statement and contrary to § 87(2)(b) statement, § 87(2)(b) was at no point moving southbound in the southbound lane of traffic but instead traveling northbound for the entire period during which PO Roman approached him.

The NYPD Patrol Guide, Procedure 202-02: Radio Motor Patrol Operator (Board Review 29) instructs the officer operating a car to do so in a manner to avoid injury to persons or damage to property.

The NYPD Patrol Guide, Procedure 221-15: Vehicle Pursuits (Board Review 30) states that unmarked Department vehicles will limit pursuits, generally prohibits ramming as a tactic, and states that pursuits must be terminated whenever the risks to uniformed members of the service and the public outweigh the danger to the community if suspect is not immediately apprehended. The necessity to commence and continue a pursuit can be determined by considering the nature of the offense, time of day, weather condition, location, population density, vehicle capability, and officer familiarity with the area.

The NYS Vehicle and Traffic Law, Section 1104 (Board Review 31) provides privileges to operators of emergency vehicles in emergency operations. The privileges are subject to the condition that the driver of an emergency vehicle is not relieved from the duty to drive with due regard for the safety of all persons and is not protected from the consequences of reckless disregard for the safety of others.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 25).
- PO Roman has been a member of service for five years and has been a subject in twelve CCRB complaints and twenty-seven allegations, of which two were substantiated:
 - 202102341 involved a substantiated allegation of threat to damage/seize property against PO Roman. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline B.
 - 202204356 involved a substantiated allegation of search (of person) against PO Roman. The Board recommended Command Discipline A, and the NYPD imposed Command Discipline A. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal injuries and seeking five million dollars as redress (Board Review 26).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator:	<u>Chris Anderson</u> Signature	<u>SI Chris Anderson</u> Print Title & Name	<u>01/09/2025</u> Date
Squad Leader:	<u>Vanessa Rosen</u> Signature	<u>Manager Vanessa Rosen</u> Print Title & Name	<u>January 10, 2025</u> Date

Reviewer:

Signature

Print Title & Name

Date